

## Opinion of the Court

press conference, Fitzsimmons did not act in “his role as advocate for the State,” *Burns v. Reed*, 500 U. S., at 491, quoting *Imbler v. Pachtman*, 424 U. S., at 431, n. 33. The conduct of a press conference does not involve the initiation of a prosecution, the presentation of the State’s case in court, or actions preparatory for these functions. Statements to the press may be an integral part of a prosecutor’s job, see National District Attorneys Assn., National Prosecution Standards 107, 110 (2d ed. 1991), and they may serve a vital public function. But in these respects a prosecutor is in no different position than other executive officials who deal with the press, and, as noted, *supra*, at 268, 277, qualified immunity is the norm for them.

Fitzsimmons argues nonetheless that policy considerations support extending absolute immunity to press statements. Brief for Respondents 30–33. There are two responses to his submissions. First, “[w]e do not have a license to establish immunities from § 1983 actions in the interests of what we judge to be sound public policy.” *Tower v. Glover*, 467 U. S., at 922–923. When, as here, the prosecutorial function is not within the advocate’s role and there is no historical tradition of immunity on which we can draw, our inquiry is at an end. Second, “[t]he presumption is that qualified rather than absolute immunity is sufficient to protect government officials in the exercise of their duties.” *Burns v. Reed*, 500 U. S., at 486–487. Even if policy considerations allowed us to carve out new absolute immunities to liability for constitutional wrongs under § 1983, we see little reason to suppose that qualified immunity would provide adequate protection to prosecutors in their provision of legal advice to the police, see *id.*, at 494–496, yet would fail to provide sufficient protection in the present context.<sup>9</sup>

---

<sup>9</sup>The Circuits other than the Seventh Circuit that have addressed this issue have applied only qualified immunity to press statements, see, e. g., *Powers v. Coe*, 728 F. 2d 97, 103 (CA2 1984); *Marrero v. Hialeah*, 625 F. 2d 499, 506–507 (CA5 1980), cert. denied, 450 U. S. 913 (1981); *Gobel v. Mari-*